

Authority for Personal Data
 P.O. Box 93374, 2509 AJ The Hague
 Hoge Nieuwstraat 8, 2514 EL The Hague
 T 070 8888 500 - F 070 8888 501
 autoriteitpersoonsgegevens.nl
 The State Secretary for Education, Culture and Science
 P.O. Box 16375
 2500 BJ THE HAGUE

Date

June 18, 2024

Our reference

2024-000282

Your letter dated

December 21, 2023

Contact person

Your reference

42349474

Subject

Legislative assessment draft for Archive Decree 20xx

Dear Mr. Van Weyenberg,

In your letter dated December 21, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) regarding the draft for the "Decision of ... to repeal the Archive Decree 1995 and replace it with the Archive Decree 20xx" (hereinafter: the draft).

The AP has comments on the draft.

Main Points

- ☐ The draft insufficiently addresses that applicants may copy and publish large volumes of public documents containing personal data of living individuals. Therefore, the draft must be supplemented with a requirement for authorization by the archivist starting from certain volumes, possibly with associated restrictions or regulations (paragraph 1).
- ☐ The draft does not adequately prevent the making of unauthorized copies during remote consultation, so the draft must be supplemented with regulations or options for the archivist to impose further requirements on remote consultation (paragraph 2).
- ☐ The draft is too non-committal regarding the involvement of GDPR expertise in the preparation of a selection decision and in deviations from it, making it necessary to supplement the text and adjust the explanation (paragraph 3).
- ☐ Government bodies that realize that a retention period is too long cannot directly intervene based on the draft, so the draft must be supplemented (paragraph 4).

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- ☐ In the case of voluntary disclosure on the internet by government bodies, the same risks apply as in the case of disclosure on the internet by archivists, so the explanation of the draft must be supplemented with the same considerations regarding appropriate measures (paragraph 5).

Scope of the Draft

The draft elaborates on various foundations from the Archive Act 20xx and concerns a complete renewal of the Archive Decree 1995.¹ The draft includes, among other things, rules regarding the content, design, and possibilities for deviating from selection decisions (Chapter 3 of the draft) and regarding access to transferred limited public documents containing personal data (Chapter 6 of the draft).

The content of the following paragraphs mainly follows from the provisions of the Archive Act 20xx. The provisions of the draft are explained as relevant under the paragraph Legislative Assessment.

Government bodies are required under the Archive Act 20xx to design selection decisions and apply these to documents for which they are responsible.² In those selection decisions, it must be determined for each category of documents whether documents should be permanently retained or temporarily for a certain period.³ The result of the balancing of interests made in that context regarding the categories of documents is referred to as "valuation."⁴

Responsible government bodies must transfer documents that are eligible for permanent retention to a designated archivist after ten years.⁵ There, the documents are public unless the responsible government body has restricted their public access upon transfer. Public access must, in any case, be restricted for documents containing special personal data, criminal personal data, or national identification numbers.⁶ Public access must also be restricted for documents containing regular personal data if the public interest in the information contained in the documents does not outweigh the respect for personal privacy.⁷

1 Articles 4.1, paragraph 3, 4.3, paragraph 3, 4.4, paragraph 3, 5.1, paragraph 5, 5.2, paragraph 4, 5.3, paragraph 2, 5.4, paragraph 3, 5.5, paragraph 4, 5.6, paragraph 4, 8.3, paragraph 4, 8.7, paragraph 5, Archive Act 20xx contain foundations for establishing further rules by (or pursuant to) a general administrative measure. This decision provides for the elaboration of these foundations.

2 Article 5.1, paragraph 1, Archive Act 20xx (Parliamentary Documents 35 968, no. 2).

3 Article 5.1, paragraph 2, Archive Act 20xx.

4 Explanatory Memorandum (EM) p. 15.

5 Article 5.4 Archive Act 20xx. Transfer may also occur earlier or be suspended in accordance with the (national) archivist, and an exemption may also be granted to a responsible government body.

6 Article 7.2, paragraph 1, subparagraphs d and e, Archive Act 20xx.

7 Article 7.2, paragraph 2, subparagraph e, Archive Act 20xx.

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Once transferred, anyone may request the archivist for access to the documents.⁸ Access to restricted public documents is only granted if the grounds for restriction do not oppose it.⁹ The archivist assesses this on a case-by-case basis.¹⁰ An objection and appeal are possible against a rejecting decision.¹¹

Legislative Assessment

1. Restriction on large-scale dissemination of public documents containing personal data

Access to restricted public documents is only granted on the condition that no copies are made by or on behalf of the requester, unless an exception applies.¹² The provision therefore only concerns access to restricted public documents. However, in the context of public documents containing personal data, the AP also sees objections to the unrestricted allowance of making copies.

In general, public documents do not concern documents in which personal data systematically occurs and which can be accessed and searched.¹³ It is more likely to involve documents where personal data only incidentally appears.¹⁴ The responsible governmental body has weighed the interest of

respecting personal privacy in its consideration of restricting public access and has decided that this does not hinder transparency.

However, the draft imposes no restrictions on the ability to make copies of public documents containing personal data of living individuals. The consequence of this is that requesters can collect copies of those documents on a large scale, make them automatically searchable, and publish them online. This is fundamentally different from making a copy of a few documents in which personal data only occurs incidentally, as is commonly done in the reading room of the archivist.¹⁵ Large-scale publication of documents containing personal data of living individuals poses significant risks.

⁸ Article 8.2, first paragraph, and Article 8.7, first paragraph, Archives Act 20xx. A requester must specify which archive and which documents the request pertains to (Article 8.7, third paragraph, Archives Act 20xx and Explanatory Memorandum p. 31).

⁹ Article 8.3, first paragraph, Archives Act 20xx.

¹⁰ Explanatory Memorandum (MvT) p. 93 Archives Act 20xx (Parliamentary Documents 35 968, no. 3). The archivist can also assess against grounds for restriction that are not included in the restriction decision.

¹¹ Access to restricted public archives | National Archive.

¹² Article 6.2 of the draft.

¹³ MvT p. 56 Archives Act 20xx.

¹⁴ MvT p. 56 Archives Act 20xx.

¹⁵ The AP previously concluded as follows: “The disclosure of personal data on the internet obviously carries much more risk for the protection of personal data than granting access to the information via a reading room. These risks may only materialize in the long term, but they have a potentially very large reach. Such risks also arise when it comes to personal data of (now) deceased individuals, where sensitive personal data regarding, for example, ethnicity, health, or socio-economic status could be linked to family members. Especially if publication on the internet occurs in a manner that allows for automatic searchability of the information, significant risks may arise regarding the use of personal data for profiling or commercial purposes.” Legislative Assessment by the AP of May 19, 2020, regarding a legislative proposal for the Archives Act 2021 (case number z2020-00153), p. 6.

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It is not simply permitted for archivists to publish public documents on their own initiative.¹⁶ The same applies to applicants and government bodies (see paragraph 5). This goes beyond what Article 89, paragraph 1, of the GDPR allows, considering the appropriate safeguards that must be put in place to ensure the principle of minimal data processing.

The concept must therefore provide for regulations or powers for the archivist to prevent applicants from copying a large volume of documents containing personal data of living individuals without appropriate safeguards. It is necessary that applicants are authorized by the archivist for copying from certain volumes, possibly with associated limitations or regulations. Measures such as those mentioned in the explanatory memorandum to the Archive Act 20xx can also be considered in the context of publication on the initiative of the archivists themselves, such as the measure to make documents not searchable by personal data, granting access only on-site or temporarily online, or the pseudonymized publication of documents.¹⁷

The AP concludes that the concept for copying public documents containing personal data from certain volumes must include the requirement to be authorized by the archivist, possibly with associated limitations or regulations, making the amendment of the concept necessary.

2. Remote Consultation and the Copying Prohibition

Article 6.2 of the concept states that applicants, in principle, may not make copies of restricted public documents to which they have access. When it comes to on-site consultation, the AP has sufficient confidence that archivists can prevent unauthorized copies. This is different when it comes to remote consultation in an online environment.

The explanatory memorandum states that the latter “can only occur if there is a comparable high level of security as is possible on-site.”¹⁸ However, the explanatory memorandum does not sufficiently clarify what a comparable high level of security entails and who is responsible for it to what extent. In the opinion of the AP, the concept therefore insufficiently prevents unauthorized copying of documents containing personal data. Access to those documents is, for good reasons, only granted to one applicant who meets strict conditions.¹⁹ Those documents must therefore only be accessible remotely by that specific applicant.

In the context of lending, Article 8.5 of the Archive Act 20xx provides that the archivist may only lend a document if, in their opinion, expert management and safe custody are sufficiently ensured.

16 Article 7.1, paragraph 5, Archive Act 20xx and Explanatory Memorandum p. 58 Archive Act 20xx.

17 Explanatory Memorandum p. 58 Archive Act 20xx.

18 Note p. 32.

19 For special personal data, personal data of a criminal nature, or national identification numbers, it concerns the conditions in Article 6.1 of the concept. For other personal data, it concerns the balancing of interests that a request under Article 7.2, paragraph 2, under e, Archive Act 20xx must pass.

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guaranteed. To begin with, a similar provision should also be included in the context of remote consultation of restricted public documents containing personal data in the draft, and the explanation should provide more clarity on what constitutes a ‘high level of security,’ ‘expert management,’ and ‘secure storage’ in light of the protection of personal data and the prohibition on copying.

Should the above lead to the conclusion that the aforementioned measures are not sufficient to prevent unauthorized copies, it must be concluded that remote consultation of restricted public documents containing (special) personal data should not take place at all.

The AP concludes that Article 6.2 of the draft insufficiently prevents the making of unauthorized copies during remote consultation, so the draft must be supplemented with regulations or an authority for the archivist to impose further requirements on remote consultation.

3. Involvement of GDPR expertise in drafting selection decisions and deviations therefrom

Responsible government bodies are required to involve certain experts when designing a selection decision. This concerns (a) a designated person based on their responsibility for information management, (b) the relevant archivist, and (c) an expert in the field of the relationship between citizens and government and the role of government information therein.

The designated person responsible for information management is tasked with organizing the necessary expertise within their own organization, for example by involving “the data protection officer [or another privacy expert] in the field of privacy.”

The AP previously concluded in the context of the Archives Act 20xx that the data protection officer (DPO) should play an important role across the full spectrum of cases covered by the Archives Act, for example in the drafting of selection decisions. In the explanatory memorandum for the Archives Act 20xx, it is explained that the DPO can have an important role in the context of drafting a selection decision, but that in larger organizations it may be more logical to call upon another department or employee responsible for shaping privacy policy, or external privacy expertise, as the DPO primarily

functions as an internal supervisor.

The AP can follow that reasoning, but then it must be mandatorily included in the draft that the person responsible for information management is required to involve the DPO or another GDPR expert. The mere notion in the explanation that the person responsible for information management

20 Article 3.4, third paragraph, of the draft. The involved experts do not each advocate for one of the various interests of the Archives Act, but weigh the interests together (Explanatory Memorandum p. 17). A report must be attached to the selection decision detailing how experts were involved and the content of the discussions held with them (Article 3.7, second paragraph, of the draft).

21 Explanatory Memorandum p. 17.

22 Legislative assessment by the AP of May 19, 2020, regarding a legislative proposal for the Archives Act 2021 (case number z2020-00153), p. 5.

23 Explanatory Memorandum p. 55 Archives Act 20xx.

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the required expertise must be organized, and that in the area of privacy (better: the protection of personal data) the DPO or another expert can be involved is insufficient.

The AP also rules that the explanation must include that the DPO or another GDPR expert must be involved if a selection decision is deviated from based on Article 3.8.

The AP concludes that the draft is too vague regarding the involvement of GDPR expertise in the preparation of a selection decision and in deviations from it, so that an addition to the legal text and an adjustment of the explanation is necessary.

4. Authority to shorten retention period

In some cases, the retention period of documents to be temporarily retained, pending a new selection decision to be established, can be shortened or extended at the direction of an authorized authority.²⁴ In the explanation of the draft, the AP is mentioned as an example of an authority that can impose a directive to retain documents for a shorter period.²⁵

The AP has the general authority to advise government bodies, both upon request and unrequested, and to instruct data controllers to bring processing into compliance with the GDPR.²⁶ Thus, it may occur that the AP decides, following a complaint from a data subject, that the retention period of a temporarily retained document is longer than necessary and must be shortened. However, the AP does not have a specific task under the GDPR and the UAVG to monitor how long documents are retained by all government bodies and whether that is justified. It is important that such control takes place and that correction, pending a new selection decision, is possible. This should be possible, for example, if in an individual case the DPO determines that a retention period is (still) too long. Based on the current legal text, this does not seem possible, except by amending the selection decision.

The AP concludes that a government body that realizes that a retention period is too long cannot directly intervene based on the draft, so the draft must be supplemented with an authority to do so in individual cases.

5. Disclosure upon exemption

Under certain conditions, responsible government bodies can be granted an exemption from the obligation to transfer documents to an archivist.²⁷

²⁴ Article 3.8 of the draft.

²⁵ Explanatory Memorandum p. 21.

²⁶ Article 58, paragraph 3, under b, and paragraph 2, under d, GDPR.

27 Article 5.6 of the Archives Act 20xx.

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With the draft, government bodies are required to ensure that the collection of documents for which an exemption has been granted is publicly accessible and free of charge for everyone, and that anyone can use or consult these documents digitally or physically, unless any legal provision opposes this.²⁸

In the opinion of the AP, the same risks apply to this disclosure on the internet by government bodies as in the case of voluntary disclosure by archivists under Article 7.1, paragraph 5, of the Archives Act 20xx. The explanatory memorandum for the Archives Act 20xx states that the archivist must take appropriate measures, such as the decision to limit public access, policies to not make public archives freely available online, measures to ensure documents are not searchable by personal data, measures to grant access only to authorized individuals, either on-site or temporarily online, or the pseudonymized disclosure of documents.²⁹

This explanation should also be included in the explanatory memorandum for the draft regarding disclosure by government bodies for documents for which an exemption has been granted.

The AP concludes that the same risks are present in voluntary disclosure on the internet by government bodies as in disclosure on the internet by archivists, so the explanation accompanying the draft must be supplemented with the same considerations regarding appropriate measures to be taken.

Workload AP

It is likely that the draft will require the AP to make limited additional efforts. This effort has not yet been accounted for in the financing of the AP. This will need to be addressed in consultation with the Minister for Legal Protection - as the responsible party for the budget from which the AP is financed - prior to the entry into force. For this reason, a copy of this legislative assessment is sent to the Minister for Legal Protection.

Disclosure

This legislative assessment will be published on the AP's website within two weeks.

Yours sincerely,

Dutch Data Protection Authority,

Aleid Wolfsen

Chairman

28 Article 5.6, paragraph 1, under a and d, of the draft.

29 Explanatory Memorandum p. 58 Archives Act 20xx.

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- Annex

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Assessment Framework AP

The AP examines whether the draft regarding the processing of personal data is in accordance with

the Charter of Fundamental Rights of the European Union (EU), the GDPR (Regulation 2016/679), or the Police and Justice Directive (Directive 2016/680), the general legal principles of the EU, and other relevant law, whereby it must be sufficiently demonstrated that the principle of proportionality is met, by:

1. the draft being suitable for achieving the pursued objective of general interest or the protection of the rights and freedoms of others (suitability);
2. the objective cannot reasonably be achieved as effectively by other means that are less intrusive to the fundamental rights of the data subjects (subsidiarity);
3. the interference is not disproportionate to that objective, which particularly implies a balancing of the importance of the objective and the severity of the interference (proportionality);
4. the draft is sufficiently clear and precise regarding its scope and is predictable in its application (legal certainty);
5. the draft sufficiently indicates under what circumstances and conditions personal data may be processed, thereby ensuring that the interference is limited to what is strictly necessary (substantive and procedural safeguards); and
6. the draft is binding under national law (bindingness under national law).

The AP pays particular attention to the rights of data subjects and the compliance of the draft with Article 6, paragraphs 1 and 3, and Article 9 of the GDPR (Regulation 2016/679), or Articles 8 and 10 of the Police and Justice Directive (Directive 2016/680) and with the principles established in Article 5 of the GDPR or Article 4 of the Directive. This implies, among other things, that:

- (a) processing must be lawful, fair, and transparent in relation to the data subject;
- (b) personal data may only be collected for specified, explicitly defined, and legitimate purposes; and
- (c) processing must be adequate, relevant, and limited to what is necessary for the purposes.

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